

court days' notice) and makes no citations to the administrative record. Respondent's brief raises the issue of deficient notice and confirms that not only has no administrative record been submitted to the court, petitioner has not requested a certified copy of the administrative record from respondent.

The court schedules this writ petition for a status conference on **September 15, 2026 at 8:30 a.m. in Department 32**. Petitioner shall forthwith obtain a copy of the administrative record and lodge it with the court by September 3, 2026. In advance of the continued hearing, the parties are directed to meet and confer in good faith regarding a further briefing schedule and a hearing date for the first amended petition. By September 3, 2026, the parties shall file a joint declaration describing the meet and confer efforts and providing a proposed briefing schedule and a proposed hearing date. Tentative ruling procedures pursuant to Local Rule 20.2.3 will apply to the September 15, 2026 status conference.

12. S-CV-0057073 Foulk, Steven R v. LoanDepot.com

If oral argument is requested, it will be heard in **Department 32** by the Honorable Trisha J. Hirashima.

Plaintiff is advised the notice of motion must include notice of the court's tentative ruling procedures. (Local Rule 20.2.3(C).)

Motion for Default Judgment

Plaintiff's request for default judgment in the amount of \$130,153.31 as against defendant LoanDepot.com LLC is denied without prejudice. Under the one judgment rule, plaintiff's request is premature. Generally, there shall be only one judgment in each action, commonly referred to as the "one judgment rule." (*Bank of America Natl. Trust & Savings Assn. v. Super. Court* (1942) 20 Cal.2d 697, *Morehart v. County of Santa Barbara* (1994) 7 Cal.4th 725, 740–41.) While default has been entered against defendant LoanDepot.com LLC, another defendant in this action, Selene Finance LP, is actively litigating this matter. The court will not enter judgment as to one defendant while litigation remains pending as to another defendant.

Based on the foregoing, the motion for default judgment is denied without prejudice.